

Tentative Rulings for June 24, 2026
Department 501

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

24CECG01966	<i>N.F. v. Lea Gruber</i> is continued to Wednesday, August 5, 2026, at 3:30 p.m. in Department 501.
25CECG04785	<i>Renee Hamoy v. Saleh Alkobadi</i> is continued to Wednesday, July 29, 2026, at 3:30 p.m. in Department 501.
25CECG04986	<i>Brahamjit Singh Randhawa v. Old Republic National Title Insurance Company</i> is continued to Tuesday, August 18, 2026, at 3:30 p.m. in Department 501.
26CECG00595	<i>Narissa Melero v. City of Sanger</i> is continued to Wednesday, August 5, 2026, at 3:30 p.m. in Department 501.
24CECG05374	<i>Jana Williams v. Robert Whalen</i> is continued to Wednesday, July 22, 2026, at 3:30 p.m. in Department 501.

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Tentative Rulings for Department 501

Begin at the next page

(47)

Tentative Ruling

Re: **City of Fresno v. Erik Honarchian**
Superior Court Case No. 25CECG00426

Hearing Date: June 24, 2026 (Dept. 501)

Motion: By Plaintiff for Order for Prejudgment Possession

Tentative Ruling:

To grant. Plaintiff, City of Fresno, is authorized to take possession of the property on the tenth (10th) day following the date of service of this order.

Explanation:

Plaintiff, City of Fresno ("plaintiff" or "Fresno") moves to take prejudgment possession of the Subject Property, located at 1585 North Blackstone Avenue in Fresno, Assessor's Parcel Number ("APN") 451-064-18. The Subject Property is currently owned by defendant owner, Erik Honarchian ("Honarchian"), whose sole tenant is Eddie's Auto world ("EAW") (collectively "defendants.") A Notice of Lis Pendens was recorded on February 21, 2025. (Amended Linden Decl., ¶12.)

The reason for the instant action is the Fresno's plan to construct the Blackstone McKinley BNSF (Burlington Northern-Santa Fe) Grade Separation Project (the "Project") which will eliminate two existing at-grade railroad crossings off the BNSF mainline tracks at North Blackstone Avenue and East McKinley Avenue by separating train traffic from pedestrians, cyclists, and moving vehicle traffic to an underpass below the BNSF mainline track. (Complaint ¶3; Bain Decl., ¶13.) The Blackstone Avenue and McKinley Avenue corridors serve as primary routes for the community, the City's Bus Rapid Transit System, emergency vehicles, and is also part of the Blackstone Smart Mobility Plan providing Class IV protected bicycle facilities along Blackstone Avenue through the Project area. (Complaint, 3; Bain Decl., ¶13.) The City Council has approved the Measure C Cooperative Project Agreement for the Project and subsequent amendments (collectively the "Agreement"), which currently provides approximately \$58,400,000 of Project funding. (Bain Decl., 3.) Project ID PW00937, Fund 22517, Org 189901, was established to disburse the necessary funds for the acquisition of the Subject Property and to pay for litigation expenses. (Bain Decl., 3.)

A plaintiff can move for prejudgment possession of property subject to eminent domain. (Code Civ. Proc., §1255.410, subd. (a).) "If the motion [for prejudgment possession] is opposed by a defendant...within 30 days of service, the court may make an order for possession of the property upon consideration of the relevant facts and any opposition, and upon completion of a hearing on the motion, if the court finds each of the following:

(A) The plaintiff is entitled to take the property by eminent domain.

(B) The plaintiff has deposited pursuant to Article 1 (commencing with Section 1255.010) an amount that satisfies the requirements of that article.

(C) There is an overriding need for the plaintiff to possess the property prior to the issuance of final judgment in the case, and the plaintiff will suffer a substantial hardship if the application for possession is denied or limited.

(D) The hardship that the plaintiff will suffer if possession is denied or limited outweighs any hardship on the defendant or occupant that would be caused by the granting of the order of possession.

(Code Civ. Proc., §1255.410, subds. (d)(2)(A)-(D).)

First, it is undisputed that Fresno is entitled to take the property by eminent domain. (Defendants' Opposition, pg. 5:17-23.)

Second, under Code of Civil Procedure section 1255.010(a), "the plaintiff may deposit with the State Treasury the probable amount of compensation, based on an appraisal, that will be awarded in the proceeding." The appraisal is for "the fair market value of the property taken ..." (Code Civ. Proc., § 1263.320, subd. (a); see also Gov. Code, § 7267.2, subd. (a) ["The amount shall not be less than the public entity's approved appraisal of the fair market value of the property."].) The making of such a deposit is required in connection with seeking an order for prejudgment possession. (Code Civ. Proc., § 1255.410, subds. (d)(1)(B), (d)(2)(B).)

Plaintiff deposited \$375,384.00 with the State Treasurer for the full taking of the Subject Property. (Amended Linden Decl., ¶¶ 3-5.) The \$375,384.00 represents deposits on three separate valuations. The first deposit of \$140,000 made on March 19, 2025, was based on the value of the real estate, based on the appraisal report prepared by K.R. McBay Appraisal Company ("KRMAC"). (Amended Linden Decl., ¶3.) The second deposit of \$141,884, made on July 21, 2025, pertained to the probable compensation in an appraisal report for the value of an advertising sign on the Subject Property prepared by Desmond, Marcello & Amster ("DM&A"). (Amended Linden Decl., ¶4, Ex. A.) The third deposit of \$93,500 made during September, 2025, is based on a report entitled "Appraisal Summary Statement for Improvements Pertaining to Realty" for the Subject Property, dated January 5, 2024. (Amended Linden Decl., ¶5, Ex. B.)

Defendants contest that the amounts deposited do not "reflect the true fair market value or income-producing nature of the Subject Property." (Defendants Opposition, pg. 6:3-5.) Defendants argue the valuations "fail[] to take into consideration the superior commercial location, placement along one of Fresno's principal traffic arteries, and the added visibility evidenced by the billboard on site." (Defendants Opposition, pg. 6:5-7.)

Third, Fresno has demonstrated the need for prejudgment possession. Fresno's Moving papers make it clear that the "Project was scheduled to begin construction in the spring of 2026. The Project is now scheduled to begin construction in the early summer of 2027." (Lee Decl., ¶ 3.) Furthermore, Fresno requires prejudgment possession to fully vacate the property and demolish the improvements. (*Id.*) Defendants cite no authority for their argument that possession cannot be granted unless the project is in serious, immediate peril of failing or that the project may lose funding. (Opposition Papers, pg. 7:13-15.)

By contrast, defendants' argue that "[t]he Project will deprive EAW the ability to continue its business operations," and Erik Honarchian "will be entirely deprived of his real property as well as his income from the monthly leases and his employment with EAW." (Defendants' Opposition, pps. 8:27-28; 9:7-9.)

Accordingly, the Court grants Fresno's motion for prejudgment possession.

Tentative Ruling

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Tentative Ruling

Re: ***Irma Lucero Eastwood v. Woodworth Investments LLC***
Superior Court Case No. 24CECG01795

Hearing Date: June 24, 2026 (Dept. 501)

Motion: Plaintiff Irma Lucero Eastwood's Motion for Protective Order against Defense Counsel's Deposition Conduct and to Compel Expert Depositions

Tentative Ruling:

To deny Plaintiff Irma Lucero Eastwood's motion for protective order against defense counsel's deposition conduct and to compel expert depositions.

Explanation:

On June 2, 2026, plaintiff filed the instant motion and an ex parte application for the same motion. The only difference between the two documents is that in the caption, one contains the designation "Ex Parte" and the other does not. Otherwise, the motions are identical. For instance, text of the notice of motion is identical for both filings:

PLEASE TAKE NOTICE that on June 2, 2026, at 3:30 p.m., or as soon thereafter as the matter may be heard, in Department 502 of the Fresno County Superior Court, B.F. Sisk Courthouse, Plaintiff IRMA LUCERO EASTWOOD applies ex parte, pursuant to Code of Civil Procedure sections 2025.420, 2025.470, 2025.480, 2034.410 and 2034.415, and California Rules of Court, rules 3.1200–3.1207, for an order: ...

California Rules of Court, rule 3.1110, subdivision (a) states that "[a] notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order." California Rules of Court, rule 3.1110, subdivision (b)(1) provides that a motion must provide "[t]he date, time, and location, if ascertainable, of any scheduled hearing and the name of the hearing judge, if ascertainable."

Plaintiff's notice of motion is defective. Plaintiff critically failed to provide timely notice of this hearing date and time to defendant, and misstated the nature of the motion. (Code Civ. Proc., §§ 1010, 1005, subd. (b); Cal. Rules of Court, rule 3.1110(b); *Bohn v. Bohn* (1913) 164 Cal. 532, 536-537.)

Furthermore, the Court notes defendants have not waived the defective notice as they did not file an opposition. (*Carlton v. Quint* (2000) 77 Cal.App.4th 690, 697 ["It is well settled that the appearance of a party at the hearing of a motion and his or her opposition to the motion on its merits is a waiver of any defects or irregularities in the

notice of motion. (Citations.) This rule applies even when no notice was given at all. (Citations.)”].)

With respect to plaintiff's request to compel a second session for the deposition of defendants' retained neurosurgeon and designated expert, Dr. Motasem Refaat, the Court further observes that the meet and confer requirements were not met. The defendants' opposition to plaintiff's ex parte application provides that it was defendants who tried to reschedule a second session, and even then plaintiff's counsel did not meaningfully respond. (Hart Decl., ¶¶ 6-9, Exs. C-E.) (Code Civ. Proc., § 2025.420, subd. (a).)

Furthermore, even if plaintiff established compliance with the meet and confer requirements met, plaintiff has not adhered to Fresno's local rules which require that the moving party first request an informal Pretrial Discovery Conference. Under Local Rule 2.1.17, "Except for motions to compel the deposition of a duly noticed party or subpoenaed person(s) who have not timely served an objection pursuant to Code of Civil Procedure section 2025.410 or otherwise obtained the consent of all interested parties agreeing to the non-appearance of the party or person(s) at the deposition as noticed or subpoenaed, ... no motion under sections 2016.010 through 2036.050, inclusive, of the California Code of Civil Procedure shall be heard in a civil unlimited case unless the moving party has first requested an informal Pretrial Discovery Conference with the Court and such request for a Conference has either been denied and permission to file the motion is expressly granted via court order or the discovery dispute has not been resolved as a consequence of such a conference and permission to file the motion is expressly granted after the conference." (Fresno Sup. Ct. Local Rules, rule 2.1.17(A).)

Finally, the Court declines to address the issue of plaintiff's request to proceed and complete the deposition of defendants' retained expert Sarah Larsen, RN, MSN, FNP, which was scheduled for June 4, 2026. The instant motion was filed on June 2, 2026, and was accordingly premature.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 06/23/26
(Judge's initials) (Date)

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Tentative Ruling

Re: **Cisneros v. Ortiz**
Superior Court Case No. 25CECG04590

Hearing Date: June 24, 2026 (Dept. 501)

Motion: Expedited Petition to Compromise Claim of Minor

Tentative Ruling:

To deny the petition, without prejudice, for the reasons explained below. In the event that oral argument is requested the minor is excused from appearing.

Explanation:

The court has reviewed the petition and supporting declaration and generally approves of the settlement, however, there are items of costs that prevent the court from granting the petition. The Petition requests costs in the amount of \$1,124.53. The court does not intend to approve charges against the minor's recovery that are unreasonable. (Prob. Code, § 3601.)

While counsel has explained much of the costs to the court's satisfaction in the supplemental declaration, concerns remain for the \$418.20 in costs described as "Case Costs". Of these, the court is particularly concerned with the reasonableness of \$10.00 in phone costs, \$5.50 for file opening costs, \$82.08 of the estimated closing costs¹, and \$200.00 for in-house record retrieval. The \$200.00 for in-house record retrieval appears duplicative of costs the court is already inclined to grant associated with obtaining the minor's records from CIOX Health, MRO, Records Research, Inc., Adventist, CRMC, and Sequoia Safety Council. The court is only inclined to accept as reasonable \$120.62 of the \$418.20 requested as "Case Costs". Thus, the total costs the court would be inclined to accept as reasonable would be \$826.95.

As such, the petition is denied, without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 06/23/26
(Judge's initials) (Date)

¹ Of the total \$132.08 in estimated closing costs, the court is inclined to allow for the \$50.00 requested to cover notary fees, leaving a remaining \$82.08 for which the court is not inclined to find reasonable.

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Tentative Ruling

Re: **Vasquez v. Ibarra**
Superior Court Case No. 24CECG01225

Hearing Date: June 24, 2026 (Dept. 501)

Motion: By Defendant Sensient Natural Ingredients LLC to Transfer the Action to Merced Superior Court

Tentative Ruling:

To grant and transfer the action to Merced County Superior Court. (Code Civ. Proc., § 397, subd. (c).)

Explanation:

Plaintiff in this action alleges sexual harassment in employment by her supervisor. The action was filed in Fresno Superior Court because one defendant, Pedro Ibarra (the alleged perpetrator of the sexual harassment), was alleged to reside in Fresno County. No other defendant is in Fresno County, and all events occurred in Merced County where plaintiff lives.

The Complaint was filed on March 20, 2024. Defendant and moving party Sensient Natural ingredients LLC ("Sensient") filed its Answer to the Complaint on May 13, 2024. Plaintiff dismissed Ibarra from the action on October 11, 2024. Sensient filed the motion to transfer the action to Merced County on April 21, 2026.

The motion is brought pursuant to Code of Civil Procedure section 397, subdivision (c), which provides: "The court may, on motion, change the place of trial in the following cases: ... (c) When the convenience of witnesses and the ends of justice would be promoted by the change."

Even if filed in a "proper" county, the court has *discretionary* power to transfer the case to any other county "[w]hen the convenience of witnesses and the ends of justice would be promoted by the change." (*Rycz v. Superior Court* (2022) 81 Cal.App.5th 824, 836.) There is no dispute as to whether venue was proper in Fresno County when the action was filed, as Ibarra is alleged to be a Fresno County resident. But he is no longer in the case, and he is the *only* connection, witness or party, to Fresno County.

The evidence submitted with the motion overwhelmingly and unquestioningly establishes, without any contrary evidence or argument from plaintiff, that the "convenience of witnesses and the ends of justice would be promoted" by a transfer to Merced County Superior Court. Plaintiff lives in Merced County; this lawsuit arises out of a Merced County workplace; all the underlying alleged events took place in Merced County; the vast majority of witnesses (25 of the 26) identified in Sensient's motion reside and work in or closer to Merced; and plaintiff has not submitted a single declaration from a single witness who would prefer to have trial in Fresno. There is one witness that might

conceivably benefit from a Fresno County trial – Ibarra – but plaintiff submits no evidence that he actually resides in Fresno County.

Plaintiff relies on Code of Civil Procedure section 396b in support of the argument that the motion is untimely. But the motion is not brought pursuant to section 396b. The motion is brought pursuant to section 397, which contains no express time limitation. It is said that a motion for change of venue based on convenience of witnesses must be made within a *reasonable* time after the answer is filed (here, May 14, 2024), and what constitutes a “reasonable” time rests largely in the trial court’s discretion. (*Cooney v. Cooney* (1944) 25 Cal.2d 202, 208.) But “[t]here is no time fixed by statute when an action may be transferred for trial because of convenience of witnesses or to promote justice.” (*Ibid.*)

The delay in bringing the motion in this case is undoubtedly great. The parties present different characterizations of the degree of litigation activity that has occurred in Fresno County to date. While a fair amount of activity has occurred, not a single deposition has occurred in this case, this is the only motion that has been filed in this case by any party, no expert witness designation has occurred, plaintiff has issued no subpoenas, and trial is over six months away. It does appear that the lion’s share of the work still has to be done.

In light of the overwhelming and uncontradicted showing of convenience to witnesses by transferring to Merced County, and burden of holding trial in Fresno (see Compendium of Witness Declarations), the court intends to grant the motion.

With regards to the parties’ objections, the court sustains Sensient’s objection nos. 1-3; and overrules objection nos. 4-6. The sustaining of objections has no impact on the court’s ruling. The court intends to deny plaintiff’s request to strike or disregard (a) the Supplemental Bauer Declaration in its entirety, (b) Exhibits 18-20, and (c) the vague request to strike “All new arguments and legal theories” in the reply. Defendant is properly responding to new issues raised by plaintiff in the opposition. However, the court intends to sustain the objection to Sensient’s Exhibit 21.

Finally, the court notes that plaintiff’s opposition brief is procedurally deficient in various regards.² The opposition (a) fails to include the required table of contents and table of authorities (Cal. Rules of Court, rule 3.1113(f)); (b) improperly cites to various superior court decisions (see *Environmental Health Advocates, Inc. v. Pancho Villas, Inc.* (2026) 118 Cal.App.5th 778, 790, fn. 4); and (c) cites to many cases with only Lexis citations without lodging copies in an appendix of authorities. (Local Rule 2.2.6.)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

² This is not a ground on which the motion is granted.

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Tentative Ruling

Re: **Cota v. Clarkston et al.**
Superior Court Case No. 23CECG00659

Hearing Date: June 24, 2026 (Dept. 501)

Motion: Motion to Set Aside

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 06/23/26
(Judge's initials) (Date)